

25SMCP00456 25SMCP00456

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TENTATIVE RULING

Petitioner Stephen Copen's Petition for Exemption and Judicial Review of Inspection by the City of Los Angeles is DENIED.

LAMC § 161.301 sets forth the kinds of real property subject to inspection under SCEP as

well as certain exemptions. (Defendant RJN, Ex. 1) Property with “two or more

dwelling units, efficiency dwelling units, light housekeeping rooms, guest rooms, and suites” is

subject to SCEP inspection unless an exception applies. The Petitioner's Property has 22 guest rooms and is

classified as a dormitory according to the Certificate of Occupancy. (Kasumyan Decl., ¶ 3; Ex. A)

The Property is rented out for student housing. The approved use is residential. (Kasumyan Decl.,

¶ 3, Defendant Ex. A) Accordingly, the Property is subject to SCEP unless an exemption applies.

SCEP has seven (7) exemptions, as listed below:

(1) Owner occupied units.

(2) Housing accommodations in hotels, motels, inns, or tourist homes. This exception

does not apply to residential hotels as defined in California Health and Safety Code

Section 50519(b)(1).

(3) A dwelling unit in a condominium or a nonprofit stock cooperative.

(4) Housing accommodations in any hospital; state licensed community care facility; convent, monastery, or other facility occupied exclusively by members of a religious order; extended medical care facility; asylum; on-campus fraternity or sorority houses; or on-campus housing accommodations owned, operated or managed by an institution of higher education, a high school, or an elementary school for occupancy by its students.

(5) Housing accommodations which a government unit, agency or authority owns, operates, or manages, or which are specifically exempted from municipal regulation by state or federal law or administrative regulation. This exception shall not apply once the governmental ownership, operation, or management regulation is discontinued.

(6) Mobile homes, or mobile home parks, or recreational vehicles as defined in California Civil Code Section 799.29, or recreational vehicle parks.

(7) Vacant properties. (Defendant RJN, Ex. 1)

Based on the foregoing, the Petition is DENIED.